



SPONSOR: Rep. Romer & Sen. Townsend
Reps. Berry, Gorman, Griffith, Morrison; Sens. Sokola,
Walsh

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 306

AN ACT TO AMEND TITLE 6 OF THE DELAWARE CODE REGARDING COMMUNICATION WITH A
COMPUTER.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Title 6 of the Delaware Code by making deletions as shown by strike through and insertions as
shown by underline as follows:

Chapter 25N. Computer Communication Act

§ 2501N. Definitions.

For purposes of this chapter:

(1) “Artificial Intelligence” or “AI” means a machine-based system that, for explicit or implicit objectives,
infers, from the input it receives, how to generate output such as predictions, content, recommendations, or decisions that
can influence physical or virtual environments. Different AI systems vary in levels of autonomy and adaptiveness after
deployment.

(2) “Avatar” means a computer-generated entity or visual or auditory representation, including a digital
character or synthetic voice, that communicates or otherwise interacts with a consumer on behalf of a person, business,
or automated system, including by simulating a persona, identity, or physical presence.

(3) “Chatbot” means a computer program designed to simulate conversation with a human user, especially
over the internet.

(4) “Clear and conspicuous” means, with respect to a disclosure, that the disclosure meets the following
criteria:

a. For any content that is solely textual or solely aural, the disclosure must be made through the same
means through which the content is presented.

b. For any content that is both textual and aural, the disclosure must be textual and aural.

c. A textual disclosure, by its size, contrast, location, the length of time it appears, and other
characteristics, must stand out from any accompanying text or other visual element so that the disclosure is easily
noticed, read, and understood.

d. An aural disclosure must be delivered in a volume, speed, and cadence sufficient for a reasonable person to easily hear and understand the disclosure.

e. The disclosure must not be avoidable.

f. The disclosure must use diction and syntax understandable to a reasonable person.

g. The disclosure must not be contradicted or mitigated by, or inconsistent with, anything else in the communication.

§ 2502N. Deceptive computer communication trade practice.

It is an unlawful practice, whether or not a consumer is misled, deceived, or damaged as a result, for a person to engage, or attempt to engage, in a commercial transaction with a consumer when all of the following occur:

(1) The consumer is communicating or otherwise interacting with computer technology, including a chatbot, artificial intelligence agent, or avatar, that engages in a textual or aural conversation and may mislead or deceive a reasonable person to believe they are engaging with an actual human.

(2) The circumstances of the communication or interaction may cause a reasonable person to believe that person is engaging with an actual human.

(3) The person fails to notify the consumer in a clear and conspicuous manner that the consumer is communicating with a computer and not a human being.

§ 2503N. Remedies.

(a) Any consumer subjected to a commercial transaction or trade practice in violation of § 2502N of this title may initiate a private right of action.

(b) A person found liable in a civil action brought under subsection (a) of this section faces a maximum liability of:

(1) Any actual damages as well as statutory damages not exceeding \$1,000.

(2) In the case of a class action, \$10 million.

(c) In addition to the foregoing, a violation of this chapter shall be deemed an unlawful practice under § 2513 of this title and a violation of subchapter II of Chapter 25 of this title. A civil penalty in any single cause of action may not exceed \$5 million. Each interactive session is a separate violation of § 2502N of this title.

(d) The remedies provided for in this chapter are not exclusive, and are in addition to any other procedures, rights, or remedies which exist with respect to any other provision of law.

Section 2. This Act takes effect 180 days after its enactment into law.

SYNOPSIS

This Act makes it an unlawful practice to engage in a commercial transaction with a consumer who interacts with computer technology, under circumstances where a reasonable person would believe that person is engaging with an actual human, without notifying the consumer that the consumer is communicating with a computer and not a human being.

It provides a private right of action for damages. It provides that a violation is an unlawful practice and prohibited trade practice. It permits the Attorney General to seek injunctive relief and a civil penalty of not more than \$5 million dollars for violations.

This Act is effective 180 days after its enactment into law.